

TENTATIVE RULINGS for LAW and MOTION
January 28, 2026

Pursuant to Yolo County Local Rules, the following tentative rulings will become the order of the court unless, by 4:00 p.m. on the court day before the hearing, a party requests a hearing and notifies other counsel of the hearing. To request a hearing, you must contact the clerk of the department where the hearing is to be held. Copies of the tentative rulings will be posted on Yolo Court's Website, at www.yolo.courts.ca.gov. If you are scheduled to appear and there is no tentative ruling in your case, you should appear as scheduled.

Telephone number for the clerk in Department Eleven

(530) 406-6843

TENTATIVE RULING

CASE: **Dumars v. McNary Mortuary dba McNary's Chapel et al.**
 Case No. CV-2024-1773

Hearing Date: **January 28, 2026** **Department Eleven** **9:00 a.m.**

Defendants McNary Mortuary dba McNary's Chapel, Kraft Bros. dba Kraft Bros. Funeral Directors, Paul Wiggins and Lailene Wiggins' (collectively, "defendants") unopposed motion to bifurcate the punitive damages phase of the trial from the liability phase is **GRANTED**. (Civ. Code § 3295, subd. (d); Code Civ. Proc., §§ 598, 1048; Evid. Code, § 352.)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.